

Present:

Mr. Justice Md. Salim

CIVIL REVISION NO.5233 OF 2002.

Afizuddin being dead, his legal heirs:

Akter Hossain and others.

..... Defendant-Respondent-Petitioners.

-VERSUS-

Md. Abdul Haque and others.

..... Plaintiff-Appellant-Opposite parties.

Mr. Sheikh Muhammed Serajul Islam,
Senior Advocate with

Mr. Mohammad Jahangir Alam with

Mr. Mohammad Zinnath Ali, Advocates

-----For the petitioners.

Mr. K.M Saifuddin Ahmed, with

Mr. Md. Akramar Rahman, Advocates

..... For the opposite parties.

**Heard on 15.12.2024, 05.01.2025 and
19.01.2025.**

Judgment on 19.01.2025.

By this Rule, the opposite parties were called upon to show cause as to why the impugned Judgment and decree dated 08.07.2002 passed by the learned Joint District Judge, 1st Court, Jamalpur in Other Class Appeal No.23 of 2000, allowing the appeal after reversing the Judgment and decree dated 27.04.2000 passed by the learned Assistant Judge, Dewangonj,

Jamalpur, in Other Class Suit No.09 of 1998 should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The facts in brief for the disposal of Rule are that the plaintiff-appellant-opposite party Nos.1-3 instituted the Other Class Suit No. 9 of 1998 before the Munsef (now Assistant Judge), Dewangonj, Jamalpur, for a declaration that the ex parte Judgment and decree dated 06.08.1970 passed in Other Class Suit No. 317 of 1969 by the learned Munsef (now Assistant Judge) court No.2, Jamalpur is not binding upon the plaintiffs as well as the same was obtained by practicing fraud contending inter alia are that in the year 1945 Syeduzzaman got the suit land from the Government by way of settlement having paid off salami; that the Syeduzzaman while owning and possessing the suit land died leaving a son namely Abdul Haque, wife namely Hajera Khatun and a daughter namely Sakina Khatun to inherit his property proporphonately and that R.O.R. Khatian No. 283 as owners of 55 decimals of land situated at plot No.2926 correctly prepared in their name; that the defendant Nos.1-2 obtained ex parte Judgment and decree in Other Class Suit No. 317/69 without making them party to the suit as well as beyond the knowledge of the plaintiffs; that

the plaintiffs knew about the aforesaid ex parte Judgment and decree dated 25.10.1997 when the defendants attempted to dispossess them and thereafter on 6.11.1997 by obtaining a certified copy of the aforesaid ex parte Judgment and decree they finally knew about the ex parte Judgment and Decree. Hence the suit.

The defendant Nos. 1(A)-2 contested the suit by filing a joint written statement contending inter alia that originally the suit land was owned and possessed by Likhon Mahmud and Lal Mahmud and their names were recorded correctly in C.S. Khatian; Lal Mahmud died leaving his only brother Likhon Mahmud to inherit his property; that Likhon Mahmud died leaving his only son Afazuddin to inherit his property; that the aforesaid Afazuddin transferred the suit land to Afizuddin and A. Mannaf by way of lease (pattan) fixing Najar Nalami; that Afizuddin died leaving his wife Atiron Bewa, two sons- Akter Hossain and Fokku Mia and two daughters-Amida Khatun and Rashida Khatun; that the heirs of the Afizuddin got their share partitioned and amicably and that the aforesaid Akter Hossain and Fokku Mia got 27½ decimals of land in their share; that the defendants grew Iri paddy in the suit land; that the suit land was recorded mistakenly in the name of the Government of

the then East Pakistan at the time of R.O.R. Survey; that the father of the defendant No. 1(a) and 1(b) and the defendant No.2 having come to know of the aforesaid wrong record filed Title Suit No.317 of 1969 against the Government represented by the Deputy Commissioner, Mymensingh and obtained Judgment and decree dated 06.08.1970 and that they have been owning and possessing the suit land peacefully; that the plaintiffs have been trying to grab the property for quite a long time that they have made false documents by forgery.

The learned Assistant Judge, Dewangonj, Jamalpur, framed necessary issues to determine the dispute involved between the parties.

Subsequently, the learned Assistant Judge, Dewangonj, Jamalpur, dismissed the suit by the Judgment and decree dated 27.04.2000.

Being aggrieved, the plaintiff-opposite parties, as appellants, preferred Other Class Appeal No.23 of 2000 before District Judge, Jamalpur. Eventually, the learned Joint District Judge, 1st Court, Jamalpur, by the Judgment and decree dated 08.07.2002, allowed the appeal after setting aside the Judgment and decree of the trial Court.

Being aggrieved, the defendant-petitioners preferred this Civil Revision under section 115 (1) of the Code of Civil Procedure before this court and obtained the instant Rule with an order of status quo.

Mr. Sheikh Muhammed Serajul Islam, the learned Senior advocate appearing on behalf of the petitioner, submits that the appellate court, without appreciating the trial court's findings, simply allowed the appeal most illegally and unlawfully, which is not tenable in the eye of the law. He then submits that the plaintiffs failed to prove their right, title, and possession over the suit property lawfully, but without considering those points, the appellate court allowed the appeal, which is liable to be set aside.

Mr. K.M Saifuddin Ahmed, the learned advocate appearing on behalf of the opposite parties, opposes the contention so made by the learned advocate for the petitioners and submits that the appellate court below, having considered all the material aspects of the case and reversing the findings of the trial Court as well as discussing the evidence rightly passed the impugned Judgment and decree and as such the Rule is liable to be discharged.

I have anxiously considered the submissions advanced by the Bar, perusing the Judgment of the courts below and oral and documentary evidence on the records. It manifests that the trial court, while dismissing the suit, says that-

“বাদীপক্ষের মনোনীত সাক্ষী মোঃ নজরুল ইসলাম তাহমার জবানবন্দীতে বলিয়াছে যে, নালিশী জমি হকেরা খায় এবং মুন্নাফ খায়। বাদীপক্ষের এই সাক্ষী নালিশী জমিতে বিবাদী পক্ষের দখল আছে বলিয়া প্রমাণ করিয়া গিয়াছে। তাই নালিশী জমিতে বাদীদের দখল আছে মর্মেও প্রমানিত হয় নাই। উপরোক্ত আলোচনার প্রেক্ষিতে নালিশী ভূমিতে বাদী পক্ষের স্বত্ত্ব স্বার্থ ও দখল বিদ্যমান নাই বলিয়া প্রতীয়মান হয়।”.

It manifests from the record that the plaintiff side, to prove the case, examined as many as 2 (two) witnesses, and the defendant side examined as many as 2(two) defense witnesses, and both parties produced their necessary documents to prove their respective cases.

I have scrutinized each deposition and cross-examination of the witnesses and anxiously considered both parties' exhibited documents. It manifests that P.W.1-plaintiff, deposed that- “নালিশী জমির মৌজা কারখানা নালিশী ভূমির R.O.R., খতিয়ান নং-২৮৩ এবং ROR দাগ নং- ২৯২৬ জমি ৫৫ শতক। নালিশী ভূমি ROR এর পূর্বে সরকারের ভূমি ছিল। নালিশী ভূমির C.S. খতিয়ান নং-৭ নালিশী ভূমি আমার বাবা ১৯৬৯ সনে সরকারের পত্তন প্রার্থনা করে। সরকার তদন্ত কাজ সম্পন্ন করে আমার বাবা বাবর পত্তন দেয়। নালিশী জমি সহ আরো জমি পত্তন পায় নজর সেলামী দেয় এবং কাগজ পত্রাদি পায়।” but it appears from the exhibit-1-document

submitted by the plaintiff that C.S. Khatian No.249, Plot Nos. $\frac{1325}{2089}$ and 1325 which are contradictory to the Plot No.2926 as mentioned in the plain. It further appears that in the application filed by Syeduzzaman, C.S Khatian number was mentioned as '7,' and the year of settlement mentioned in the plaint is 1945, but the year of settlement mentioned in his deposition is 1969. Moreover, from the order passed by the then S.D.O. Mymensingh, it appears that a settlement of 3.34 acres of land was granted at Plot Nos. 1301, 1325, and 2080 within Mouza Karkhana being, Estate Nos. 8559 and 8572. On the other hand, the defendant-petitioners denied the ownership and possession of the plaintiff-opposite-parties, and in order to prove their case, D.W.1, in cross-examination, stated that-

“আমি ১৩৫৫/৫৬ সনে আফাজ উদ্দিন বরাবর খাজনা প্রদান করিয়া দাখিলা প্রাপ্ত হইয়াছি তাহা দাখিল করিয়াছি (প্রদঃ-ক সিরিজ) ৩ ফর্দ ইতিপূর্বে Exhibit হয়েছিল। সরকার বরাবর খাজনার দাখিলা ৪ ফর্দ (প্রদঃ খ সিরিজ)। খারিজ খতিয়ান নং-১৭০৮ (প্রদঃ গ) দাখিল করিয়াছি। মিউটেশন কেস নং-৮৯/৭২-৭৩ দাখিল করিয়াছি (প্রদঃ গ) বি আর এস রেকর্ড খতিয়ান নং-৯১ মূল পর্চা দাখিল করিয়াছি। ---
----- নালিশী জমিতে আমরা ইরি ধান লাগাইয়াছি। আমরা ধান কাটিয়া ঘরে তুলিয়াছি।”

It appears that the defendants, on the basis of the Patten taken through Najar Salami from the ex-landlord, acquired right, title, and possession over the suit property.

Further, it manifests from certified copies of C.S. and R.O.R. Khatian and copies of settlement and rent receipts, etc., that the plaintiffs' predecessor, Syeduzzaman, settled 3.34 acres of land at C.S. Plot Nos. 1301, 1325/2080, and 1325 within Mouza Karkhana, the corresponding R.O.R. Plot of which is not 2926; instead, C.S. Plot No. 1323 corresponds to R.O.R. Plot No. 2926, and the defendants' property is situated at C.S. Plot No. 1323 corresponds to presently, i.e., R.O.R. Plot No. 2926 over which they have obtained Judgment and decree dated 06.08.1970 in Other Class Suit No. 317 of 1969 by a competent court. Therefore, it appears that the plaintiffs could not prove that the aforesaid Judgment and decree are null and void by adducing any relevant witness and documents, and therefore, the Judgment and decree dated 06.08.1970 in Other Class Suit No. 317 of 1969 stands valid and that the simple suit for declaration that the Judgment and decree dated 06.08.1970 passed in Other Class Suit No. 317 of 1969 is null and void without making a further prayer for declaration of title and confirmation of possession is not maintainable.

This view gets support from the case of Bhashani Mondal's death, his heir Nanda Rani Mondal, and another Vs. Md. Abdus

Sukur and others reported in 18 BLT (AD) 497 where their Lordships of the Appellate Division held that-

“In view of the fact that deed dated 14.05.1969 was rightly held to be a forged one and not binding upon the plaintiff of Title Suit No. 51 of 1997, Bhashani Mondal and that the court of appeal below rightly held that the plaintiff’s possession was not proved, whereas, the defendant Bhashani Mondal’s possession was already proved in the earlier Suit No. 51 of 1997 and in the present suit, a suit for declaration simplicitor is not maintainable.”

Further, in a suit for cancellation of a decree passed by a competent court, it is incumbent upon the plaintiff to prove by cogent evidence the decree was obtained by fraud practicing. This view gets support from the case of Jinnaqtunessa Vs. Bangladesh, represented by the Deputy Commissioner, Mymensingh, reported in 15 BLD (HCD) 104 where it has been held that-

“It appears from the evidence of the lone witness who deposed in the said O. C. suit that he said nothing about obtaining the ex parte order in the Misc. Case No. 142 of 1970 by practicing any fraud upon the court or by any other fraudulent means. As such, I find substance in the above submission of the learned Advocate, Mr. Gour Gopal Shaha submits that in passing the ex-parte order in Suit No. 492 of 1981,

the learned Munsif did not apply its judicial mind; the suit being a suit for cancellation of a-decree it was incumbent upon the plaintiff to show that the decree was obtained by practicing fraud upon the court, no evidence to that effect being adduced by the plaintiff, the learned Assistant Judge committed an error of law in decreeing the suit ex-parte. He also submits that it is the plaintiff who has to prove his case through his witness and papers. In support of his above contentions, he has rightly placed reliable upon the cases of Md. Naimuddin Sarder-Vs- Md. Abdul Kalam Biswas and another reported in 39 DLR (A. D) 237, and Bangladesh- Vs- Israil Ali and others reported in 1981 BLD (A. O.) 371. In the aforesaid two cases, their Lordships in the Appellate Division observed that the plaintiff, in order to succeed, must establish his own case, and the weakness of the defendant's case is no ground for passing a decree in favor of the plaintiff."

Moreover, according to Section 90 of the Evidence Act, it is the duty of the plaintiffs to prove that the defendants have created forged documents and procured the Judgment and decree dated 06.08.1970 in Other Class Suit No.317 of 1969 collusively and fraudulently though the documents were more than 30 years old. But they have to prove the same; otherwise, they are not entitled to seek any relief. This view gets support from the case of Asgor Ali and others Vs.

Noor Jahan and others reported in 73 DLR (AD) 119 wherein their Lordship of the Appellate Division held that-

“We note from the evidence on record that the plaintiffs claimed that the Amalnama and Dakhilas, were claimed by them to be forged. But no step was taken by the plaintiffs to prove that those documents were indeed forged. When any document is produced by a party to a suit and marked exhibit, especially when a presumption under the Act is attracted by that document, it is incumbent upon the contesting party to lead evidence in order to substantiate the claim that the document is a forgery or is not genuine” and that the aforesaid decision is applicable in the instant suit.”

Considering the above facts and circumstances, it appears that the plaintiffs are not entitled to institute the instant suit as per the provision of section 42 of the Specific Relief Act to challenge the established legal right, title, and possession of the suit property situated at C. S., i.e., settlement plot No. 1323 corresponding to R.O.R. ,i.e., presently plot No. 2926 appertaining to C.S., i.e., settlement Khatian No. 444 within Mouza Karkhana inasmuch as the plaintiffs’ very claim regarding the date of the settlement as well as plot number as those appear from the very plaint, documents, and rent receipts are not only ambiguous, untrustworthy and mysterious but also

contradictory which candidly proved that plaintiffs' have no property at plot No. 2926 and therefore, the plaintiffs are not entitled to get any relief as prayed.

On the above facts, circumstances of the case, and discussions made herein above, I am of the firm view that the learned Joint District Judge, 1st Court, Jamalpur, did not correctly appreciate and construe the documents and materials on record in accordance with the law in allowing the appeal setting aside the Judgment of the trial Court. The appellate court did not advert the reasoning of the trial court, and this hit the root of the merit of the suit; it also appears that the appellate court did not comply with the requirements of Order XLI Rule 31 of the Code of Civil Procedure in delivering the impugned Judgment and decree and thus it is not a proper judgment of reversal and has occasioned a failure of justice. Consequently, I find merit in the Rule.

Resultantly, the Rule is made absolute.

The impugned Judgment and decree dated 08.07.2002 passed by the learned Joint District Judge, 1st Court, Jamalpur in Other Class Appeal No.23 of 2000 is set aside, and the Judgment and decree dated 27.04.2000 passed by the learned

Assistant Judge, Dewangonj, Jamalpur, in Other Class Suit
No.09 of 1998 is hereby affirmed.

Communicate the Judgment and send down Lower Court
Records at once.

.....

(Md. Salim, J).

Kabir/BO